



Bill Number: S.B. 1286

Kavanagh Floor Amendment

**Reference to: REGULATORY AFFAIRS AND GOVERNMENT
EFFICIENCY Committee Amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Extends, from 14 days to 30 days, the initial and subsequent time periods that a veterinarian may prescribe anti-microbial drugs through electronic means.
2. Makes conforming changes.

KAVANAGH FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1286
(Reference to REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute

or previously enacted session law.

[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.

~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.

~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.

<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.

~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.

{{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS}} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.

{{Orange lowercase underlining in double curly brackets}} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.

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1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 32-2240.03, Arizona Revised Statutes, is amended
3 to read:

4 32-2240.03. Veterinarian client patient relationship through
5 electronic means; consent; prescriptions; scope
6 of practice

7 A. Notwithstanding any other law and except for an animal that is
8 used in commercial food production that is regulated under title 3, a
9 veterinarian may establish a veterinarian client patient relationship
10 through electronic means if all of the following apply:

11 1. The veterinarian is licensed pursuant to this chapter or holds a
12 permit pursuant to section 32-2217.01.

13 2. The veterinarian obtains informed consent from the client,
14 including an acknowledgement that the standards of care prescribed by this
15 chapter apply to in-person visits and visits through electronic means.

1 The veterinarian shall maintain for at least three years documentation of
2 the consent described in this paragraph.

3 3. The veterinarian provides the client with the veterinarian's
4 name and contact information and secures an alternate means of contacting
5 the client if the electronic means is interrupted. The electronic or
6 written record provided to the client after the ~~telemedicine~~ visit ~~THROUGH~~
7 ~~ELECTRONIC MEANS~~ must include the veterinarian's license number.

8 4. Before conducting an evaluation of the patient through
9 electronic means, the veterinarian advises the client of all of the
10 following:

11 (a) The veterinarian may ultimately recommend an in-person visit.

12 (b) The veterinarian is prohibited by federal law from prescribing
13 some drugs or medications based only on an electronic examination.

14 (c) The appointment through electronic means may be terminated at
15 any time.

16 5. The veterinarian is able to recommend the client to a local
17 veterinarian who can see the animal in person. The client has the option
18 to choose an in-person visit.

19 B. A veterinarian may prescribe drugs or medications after
20 establishing a ~~veterinary~~ ~~VETERINARIAN~~ client patient relationship through
21 electronic means, except that:

22 1. Prescriptions based only on an electronic examination ~~{{[FOR~~
23 ~~NON-ANTIMICROBIAL DRUGS]}}~~ may be initially issued for up to ~~fourteen~~
24 ~~[SIXTY]~~ ~~[THIRTY]~~ days and may be renewed one time for up to ~~fourteen~~
25 ~~[SIXTY]~~ ~~[THIRTY]~~ days with an additional electronic examination.

26 ~~{{[2. PRESCRIPTIONS BASED ONLY ON AN ELECTRONIC EXAMINATION FOR~~
27 ~~ANTIMICROBIAL DRUGS MAY BE ISSUED ONLY FOR A PERIOD OF UP TO FOURTEEN DAYS~~
28 ~~OF TREATMENT. THE VETERINARIAN MAY NOT ISSUE ANY FURTHER ANTIMICROBIAL~~
29 ~~DRUG PRESCRIPTIONS, INCLUDING ANY REFILLS, FOR THE SAME ANIMAL PATIENT~~
30 ~~UNLESS THE VETERINARIAN PERFORMS AN IN-PERSON EXAMINATION OF THE ANIMAL~~
31 ~~PATIENT.]}}~~

32 ~~{{[2.]}}~~ ~~{{[3.]}}~~ Prescriptions based only on electronic
33 examinations and that have been renewed once may not be renewed again
34 without an in-person examination.

35 ~~{{[3.]}}~~ ~~{{[4.]}}~~ The veterinarian must notify the client that
36 some prescription drugs or medications may be available at a pharmacy and,
37 if requested, the veterinarian will submit a prescription to a pharmacy
38 that the client chooses.

39 ~~{{[4.]}}~~ ~~{{[5.]}}~~ The veterinarian may not order, prescribe or
40 make available a controlled substance as defined in section 36-2501 unless
41 the veterinarian has performed an in-person physical examination of the
42 patient or made medically appropriate and timely visits to the premises
43 where the patient is kept.

44 ~~{{[5.]}}~~ ~~{{[6.]}}~~ The veterinarian shall prescribe all drugs and
45 medications in accordance with all federal and state laws.

Senate Amendments to S.B. 1286

1 C. Veterinarian services provided through electronic means are
2 subject to the rules adopted pursuant to section 32-2275 relating to the
3 practice of veterinary medicine.

4 Enroll and engross to conform

5 Amend title to conform

JOHN KAVANAGH

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C: JR

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